

COUNCIL OF EUROPE

EUROPEAN COMMISSION OF HUMAN RIGHTS

DECISION OF THE COMMISSION

The applicant's identity
may be disclosed.
L'identité du requérant
peut être divulguée.

AS TO THE ADMISSIBILITY OF

Application No. 14464/88
by William BUCKLER
against the United Kingdom

The European Commission of Human Rights sitting in private on
14 April 1989, the following members being present:

MM. S. TRECHSEL, Acting President

F. ERMACORA

G. SPERDUTI

G. JÖRUNDSSON

A.S. GÖZÜBÜYÜK

A. WEITZEL

J.C. SOYER

H.G. SCHERMERS

H. DANELIUS

J. CAMPINOS

H. VANDENBERGHE

Sir Basil HALL

MM. F. MARTINEZ

C.L. ROZAKIS

Mrs. J. LIDDY

Mr. L. LOUCAIDES

Mr. J. RAYMOND, Deputy Secretary to the Commission

Having regard to Article 25 of the Convention for the
Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 3 May 1988
by William BUCKLER against the United Kingdom and registered on
12 December 1988 under file No. 14464/88;

Having regard to the report provided for in Rule 40 of the
Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The applicant is a British citizen born in 1948 and resident in Penarth. The facts as submitted may be summarised as follows.

On 22 May 1984, the applicant was served with a writ by B.P. (Properties) Limited for possession of Great House Farm and adjoining lands to which it held the title. This property had been occupied by the applicant's family since 1916 and on his mother's death on 26 March 1983, the applicant had inherited her estate and continued to live on the farm.

The applicant served a defence to the claim for possession based on the defence of adverse possession as set out in section 15(1) and section 17 of the Limitation Act 1980. These provisions have the effect of barring any action to recover land after 12 years of exclusive occupation and of extinguishing any other title to that land.

On 10 July 1986, the case was heard by Mr. Justice Hollis in the High Court. The judge held that on the evidence the applicant's mother had been given a valid licence in respect of her occupation of the property and that accordingly she had not been in adverse possession of the property within the meaning of that term. The judge gave judgment for B.P. (Properties) Ltd but held the order of possession should not be implemented for six months.

The applicant appealed to the Court of Appeal, on the ground, inter alia, that the applicant's mother had not accepted the licence offered since she regarded herself as the owner. A hearing took place on 16-17 July 1987.

On 31 July 1987, the Court of Appeal dismissed the appeal, holding that the applicant's mother, whether she had acquiesced or not, was in possession of the property by the licence of B.P. (Properties) Ltd with the result that her possession was no longer adverse.

The applicant applied to the House of Lords, which on 3 March 1988 refused him leave to appeal. A stay of execution of 28 days was ordered to enable the applicant to make alternative arrangements for accommodation.

On 29 April 1988, B.P. (Properties) Ltd attempted to evict the applicant and his family. The applicant refused to leave the property however and the bailiffs were obliged to withdraw. On 29 November 1988 the company obtained possession of the property and on 6 December demolition of the farmhouse began.

COMPLAINTS

The applicant complains that he did not receive a fair trial contrary to Article 6 of the Convention. He alleges that the High Court judge disregarded his evidence and showed bias towards the plaintiffs. He submits that the judge ignored a previous court ruling and failed to distinguish between the current and previous holders of title to the property. He complains that the Court of Appeal and House of Lords upheld the iniquitous decision of the High Court.

The applicant also complains of the decisions interfering with his rights under Article 8 of the Convention and Article 1 of Protocol No. 1 to the Convention. He further submits that he has had no effective remedy in respect of his complaints contrary to Article 13 of the Convention since the Court of Appeal and House of Lords dismissed his appeal.

THE LAW

1. The applicant complains of the decisions of the High Court, Court of Appeal and House of Lords. He invokes Article 6 para. 1 of the Convention.

With regard to the judicial decisions of which the applicant complains, the Commission recalls that, in accordance with Article 19 of the Convention, its only task is to ensure the observance of the obligations undertaken by the Parties in the Convention. In particular, it is not competent to deal with an application alleging that errors of law or fact have been committed by domestic courts, except where it considers that such errors might have involved a possible violation of any of the rights and freedoms set out in the Convention. The Commission refers, on this point, to its established case-law (see e.g. No. 458/59, Dec. 29.3.60, Yearbook 3 pp. 222, 236; No. 5258/71, Dec. 8.2.73, Collection 43 pp. 71, 77; No. 7987/77, Dec. 13.12.79, D.R. 18 pp. 31, 45).

The applicant has also complained of not receiving a fair trial within the meaning of Article 6 para. 1 of the Convention. The Commission has examined the applicant's complaints as they have been submitted by him. The Commission finds however that the applicant has failed to substantiate his allegations and that this complaint accordingly discloses no appearance of a violation of Article 6 para. 1 of the Convention.

It follows that this part of the application is manifestly ill-founded within the meaning of Article 27 para. 2 of the Convention.

2. The applicant has also complained that the decisions have interfered with his rights under Article 8 of the Convention, which provides:

"1. Everyone has the right to respect for his private and family life, his home and his correspondence.

2. There shall be no interference by a public authority with the exercise of this right except such as is in accordance with the law and is necessary in a democratic society in the interests of national security, public safety or the economic well-being of the country, for the prevention of disorder or crime, for the protection of health or morals, or for the protection of the rights and freedoms of others."

The Commission notes that the applicant has lived in the property in question since his birth and that the decision of the court giving possession to B.P. (Properties) Ltd could be considered as an interference with the applicant's right to respect for his home. The Commission finds however that the order, pursuant to court proceedings, was in accordance with law and was "necessary in a democratic society" for the legitimate aim of protecting the rights of

other, namely, the rights of B.P. (Properties) Ltd, who were held to be owner of the property. The Commission accordingly finds any interference justified within the meaning of Article 8 para. 2 of the Convention.

It follows that this complaint is manifestly ill-founded within the meaning of Article 27 para. 2 of the Convention.

3. The applicant has complained that the decisions have interfered within his rights under Article 1 of Protocol No. 1 to the Convention, which provides:

"Every natural or legal person is entitled to the peaceful enjoyment of his possessions. No one shall be deprived of his possessions except in the public interest and subject to the conditions provided for by law and by the general principles of international law.

The preceding provisions shall not, however, in any way impair the right of a State to enforce such laws as it deems necessary to control the use of property in accordance with the general interest or to secure the payment of taxes or other contributions or penalties."

The Commission recalls however that the courts held that the applicant had no right to occupy the property, which belonged to another. The Commission finds, therefore, that there has been no interference with the applicant's possessions within the meaning of Article 1 of Protocol No. 1.

It follows that this complaint is incompatible *ratione materiae* with the provisions of the Convention within the meaning of Article 27 para. 2 of the Convention.

4. The applicant also complains of having no effective remedy in respect of his complaints contrary to Article 13 of the Convention, since the Court of Appeal and House of Lords dismissed his appeal against the High Court decision.

Even assuming that the applicant has an arguable claim of a violation of the Convention, the Commission finds however that the fact that the applicant's appeals to the Court of Appeal and House of Lords were unsuccessful does not deprive them of their effectiveness as a remedy within the meaning of Article 13 of the Convention. Insofar as the applicant complains of being unable to appeal beyond the House of Lords, the Commission recalls that Article 13 cannot be interpreted as affording a right of appeal from highest court in a legal system (see e.g. No. 11508/85, Dec. 17.7.86, to be published in D.R.).

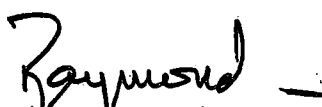
It follows that this complaint is manifestly ill-founded within the meaning of Article 27 para. 2 of the Convention.

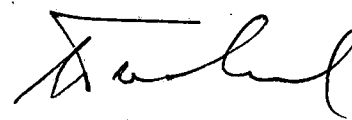
For these reasons, the Commission

DECLARES THE APPLICATION INADMISSIBLE.

Deputy Secretary to the Commission

Acting President of the Commission


(J. RAYMOND)


(S. TRECHSEL)